

In T 171/85 (OJ 1987, 160) the board decided that if discrepancies or inconsistencies were found in the text communicated under R. 51(4) EPC 1973 to the applicant for a European patent, they may be removed in agreement between examining division and applicant even if the latter had already given his approval under R. 51(4) EPC 1973 to the (faulty) text.

3.5. Examination after remittal for further prosecution

If a case is remitted from the boards of appeal for further prosecution, the examining division must check whether requests from examination proceedings prior to the appeal are still outstanding and must give the party an opportunity to comment (see T 1494/05; see also Guidelines E-X, 2.1 – March 2022 version).

If a department has to give a decision in a case which has already been remitted by the board of appeal for further prosecution to that department, it is bound by the ratio decidendi of the board of appeal, insofar as the facts, e.g. the subject-matter of the patent and the relevant state of the art, are the same (Guidelines E-X, 4 – March 2022 version).

In T 79/89 (OJ 1992, 283) the board rejected the appellant's main request, and remitted the case to the department of first instance for further prosecution on the basis of the auxiliary request. In this case, Art. 111(2) EPC 1973 was applicable, according to which the department of first instance shall be bound by the ratio decidendi of the board of appeal, insofar as the facts are the same. The ratio decidendi of the board of appeal's previous decision was that the subject-matter of the main request was not allowable, but that the grant of a patent in accordance with the auxiliary request was subject to a consideration of its patentability by the examining division. In this case, in the board's judgment, following the issue of the board's previous decision, the examining division clearly had no power to re-open examination on the basis of the claims which the appellant requested (with subject-matter corresponding to the previously rejected main request). Having examined the subject-matter of the auxiliary request for patentability and found no objection to it, the examining division was bound to issue a communication under R. 51(4) EPC 1973 with a text based on the auxiliary request. Furthermore, in the absence of approval of such text, in the board's judgment the examining division was bound to refuse the application, for the reasons set out in its decision. Since the examining division had no power to re-open examination in respect of the claims as requested by the appellant, in the context of the appeal in question the board necessarily had no power to re-open examination in respect of such claims, because it could only exercise power which was within the competence of the examining division (Art. 111(1) EPC 1973). Thus, the main request of the appellant had to be refused.

3.6. Amendments after the decision to grant

In T 798/95 the decision to grant the European patent was handed over by the formalities section of the examining division to the EPO postal service for notification. The request for amendment of the application under R. 86(3) EPC 1973 was filed on the same day at 6.47 pm, thus after completion of the proceedings. Referring to G 12/91 (OJ 1994, 285), the board held that a request for amendment under R. 86(3) EPC 1973 filed after completion

of the proceedings up to grant before an examining division was to be disregarded, even if the filing of the request and the completion of the proceedings occurred on the same date. See also Guidelines H-II, 2.6 – March 2022 version.

In T 646/20 the board noted in its catchword that further Member States could not be designated after grant. With reference to decision G 1/10 (OJ 2013, 194), the board concluded that in the interest of legal certainty, the patent in the version as granted should no longer be open to amendments and that the applicant had had "adequate means at his disposal" to remedy beforehand. In the board's view, it was incumbent on the applicant to verify the complete file in order to spot any inconsistencies it may wish to draw attention to. Inconsistencies related to text and the designated Member States in the communication under R 71(3) EPC and not raised in response thereto must be considered as approved by applicant.

3.7. Withdrawal of amendments and abandonment of subject matter

3.7.1 General issues

A request to withdraw an amendment is itself a request for further amendment; thus, if this request occurs after reply to the first communication from the examiner, the corresponding amendment will be admitted only if the examiner consents.

In deleting subject-matter from an application, the applicant should avoid any statement which could be interpreted as abandonment of that subject-matter. Otherwise the subject-matter cannot be reinstated (see J 15/85; G 1/05, OJ 2008, 271; G 1/06, OJ 2008, 307; see also Guidelines H-III, 2.5 – March 2022 version).

In J 15/85 (OJ 1986, 395) it was held that if an applicant cancels claims in a patent application but fails to state at the time that their deletion is without prejudice to the filing of a divisional application, the examining division is obliged to withhold its consent to the subsequent filing of a divisional application. However, a declaration of abandonment can be interpreted to the effect that there was no intention to abandon definitively the subject-matter of the application or patent. In T 910/92 the applicants had expressly abandoned several claims in their application, but later retracted their declaration and requested that the claims deleted from the application be reinstated in a divisional application. The board considered under what circumstances it was possible to retract a declaration of abandonment. It referred to the case law, which required that the real intention of the party making the declaration be established, taking into account all the circumstances of the case, and concluded that in this case the appellants' real intention was not to abandon part of the original disclosure altogether, but to avoid the lack of unity that had arisen as a result of the change in the protection sought. In contrast to the case in J 15/85 the board did not see any need in this case to protect the public interest by generally prohibiting the retraction of a declaration of abandonment. It could be expected that any third parties interested in the proceedings relating to the application in question would have asked to inspect the files at suitable intervals up until the conclusion of the proceedings (G 1/06, OJ 2008, 307; G 1/05, OJ 2008, 271; J 2/01, OJ 2005, 88; J 29/97).

In J 13/84 (OJ 1985, 34) the Legal Board applied the same criteria to the interpretation of a declaration of abandonment as the case law had developed for declarations of withdrawal of an application. In particular, all the circumstances had to be taken into consideration and not just the preceding declarations. In the case in question the applicants had deleted their claim 21 in response to a communication from the examining division, adding that "in accordance with the examiner's suggestion, we are filing a divisional application for the intermediate products ... and for their method of preparation". The Receiving Section took the view that the divisional application, with the former claim 21 as its subject-matter, was not filed within the period of two months prescribed in R. 25(1)(b) EPC 1973 (in the version which entered into force on 7 October 1977; the provision was deleted with effect from 1 October 1988). It argued that claim 21, which had already been divided out from the application on 6 June 1983 and therefore no longer formed part of the parent application on 31 August 1983 (the date of filing of the divisional application), could no longer be converted into a divisional application. The Legal Board did not share this view and called for the declaration of abandonment to be interpreted in the same way as a declaration of withdrawal of an application, i.e. taking into account all the circumstances. It added that, generally speaking, and as stated in the headnote of J 11/80 (OJ 1981, 141), a request for withdrawal should only be accepted without question if it was completely unqualified and unambiguous. The Legal Board also referred to decisions J 24/82, J 25/82 and J 26/82 (OJ 1984, 467), in which it was found that, where claims were withdrawn specifically under R. 25(1) EPC 1973 (in the version which entered into force on 7 October 1977), the applicant's restrictive intention was not to be interpreted in isolation on the strength of particular statements but in the context of the entire procedure. The Legal Board took the view that in this case no express intention to drop the claim ensued from the circumstances. The divisional application was therefore admissible.

In T 118/91 the board ruled that the inclusion of a particular claim in a divisional application did not mean that claim had been dropped from the parent application.

3.7.2 Effects of non-payment of claims fees

If an applicant fails to pay claims fees, he is considered under R. 45(3) EPC (former R. 31 EPC 1973) to have abandoned the claims. Apart from resolving the specific question whether certain parts of the application were part of the description or were claims, decision J 15/88 (OJ 1990, 445) made clear that such abandonment of certain claims could only cause a substantive loss of subject-matter if the subject-matter involved was contained only in the claims and not also in the description or drawings. The Legal Board held that an applicant who declined to pay claims fees when they were demanded ran the risk that features of a claim deemed to have been abandoned pursuant to R. 31(2) EPC 1973, which were not otherwise to be found in the description or drawings, could not subsequently be reintroduced into the application and, in particular, into the claims. The idea that there could be forced abandonment of subject-matter, in reliance on R. 31(2) EPC 1973, appeared rather to be in conflict with the principles of higher law to be deduced from Art. 52(1) EPC 1973 in conjunction with Art. 123(2) EPC 1973. An applicant normally had the right to derive subject-matter from any part of the description, claims or drawings as originally filed. See also T 490/90.

3.8. Withdrawal of the patent application

3.8.1 General issues

A valid notice of withdrawal which has been received at the EPO is binding on the applicant, although, in the case of withdrawal by mistake, R. 139 EPC (R. 88 EPC 1973) may be applicable (see e.g. J 10/87, OJ 1989, 323; J 4/97; see also T 1673/07, J 6/13; J 11/16). However, a withdrawal cannot be retracted once the public has been officially informed of it (J 1/11, J 2/15). A publication in the European Patent Register has the same legal effect as a publication in the European Patent Bulletin, unless otherwise specified (J 1/11, J 2/15).

3.8.2 Unambiguous and unconditional withdrawal

A request for withdrawal of a European application should only be accepted without question if it is completely unambiguous and unconditional (cf. J 11/87, OJ 1988, 367; J 27/94, OJ 1995, 831; J 19/03; see also J 11/80, OJ 1981, 141; T 60/00; J 38/03; T 1673/07). In J 11/87 (OJ 1988, 367) the Legal Board added that where there was even the slightest doubt as to the applicant's actual intent such a declaration should be construed as a declaration of withdrawal only if the subsequent facts confirmed that such had been his true intent.

In J 15/86 (OJ 1988, 417) the Legal Board stated that there was a recognised difference between passive abandonment and active withdrawal of a European patent application. Each case in which there was a dispute as to the applicant's intention had to be considered on its own facts. A written statement by the applicant or his representative had to be interpreted in the context of the document as a whole and the surrounding circumstances. Similarly, J 7/87 (OJ 1988, 422) ruled that the language used had to be interpreted in the light of the surrounding circumstances, from which it had to be clear that the applicant really wanted immediate and unconditional withdrawal rather than passive abandonment leading in the course of time to deemed withdrawal. Actual withdrawal did not depend on whether the applicant had used the term "withdrawal".

In J 6/86 (OJ 1988, 124) the Legal Board considered the statement "the applicant wishes to abandon this application" as an unambiguous withdrawal of a European patent application, since nothing in the circumstances under which the statement had been made could be taken as qualifying such an interpretation. It was too late to ask for retraction of a notice of withdrawal once the withdrawal had been notified to the public in the European Patent Bulletin (see J 15/86, OJ 1988, 417).

3.8.3 No correction of an erroneous withdrawal after public informed

In J 4/97 the applicants informed the EPO three days after withdrawal that their request had been made erroneously and should be cancelled. The EPO informed the applicants that the withdrawal had come into force and was binding, and notification of the withdrawal was later published in the European Patent Bulletin. However, the Legal Board held that the withdrawal of the application could be corrected under R. 88 EPC 1973 (which

corresponds to R. 139 EPC). The legal considerations contained in J.10/87 concerning the retraction of a withdrawal of a designation of a contracting state applied equally to the withdrawal of a patent application as a whole. In particular, it had to be ascertained that the withdrawal had been due to an excusable error, that there was no undue delay in seeking retraction, and that the retraction of the withdrawal had not adversely affected the public interest or the interests of third parties. In the circumstances of the case, the Legal Board held that the mere fact that the withdrawal was retracted after only three days was a strong indication that it had indeed been made in error. The error resulted from confusion between two similar reference numbers assigned by the appellants to their patent applications. In the Legal Board's opinion this mistake could be considered as an excusable oversight. The public interest was not affected because the withdrawal was retracted before the corresponding entry was made in the Register of European Patents and more than six weeks before the withdrawal was officially notified to the public in the European Patent Bulletin. Thus, at the time the general public was informed of the withdrawal, the public part of the file clearly showed that a request for cancellation of the withdrawal had been filed thereby warning third parties relying on the information published by the EPO. The interests of third parties could be protected if a national court applied Art. 122(6) EPC 1973 mutatis mutandis.

In J. 4/03 the Legal Board noted that the request for retraction of the withdrawal of the application had been made after notification of the withdrawal in the European Patent Bulletin, the means of official publication of the EPO. That meant that the public had already received the information that the application no longer existed so that the principal precondition for allowing a correction was not met. See also J.7/06.

In J.14/04 the Legal Board rejected the request for correction of the withdrawal of the application. It agreed with J.10/87 that the public interest lay in being able to rely on information officially published by the EPO. The Legal Board took the view that the Register of European Patents constituted an official publication (see also J.37/03, J.38/03), and as, at the time of the request for withdrawal, access to the Register was freely offered to the public on the Internet, the request for withdrawal was available to the public on the date the Register indicated the request for withdrawal was recorded. It was of no relevance whether the file was actually consulted on this date. Nor did the Legal Board consider that Art. 122(6) EPC 1973 could apply mutatis mutandis to cases of correction under R. 88 EPC 1973.

The Legal Board held in J.25/03 (OJ 2006, 395) that entries in the Register of European Patents also amounted to notification to the public from the day of their publication as well as publication in the European Patent Bulletin. The Legal Board rejected the request for correction of the withdrawal of the patent application and added that it was of no relevance that only four days had elapsed between mention of the withdrawal in the Register and mention of the request for retraction of the withdrawal. Legal certainty would suffer unacceptably if further delay were permitted for retraction of the withdrawal in such circumstances where even after inspection of the complete file there would not have been any reason for a third party to suspect, at the time of the official notification to the public of the withdrawal, that the withdrawal could be erroneous and later retracted.